

Court No. - 37

Case :- WRIT - C No. - 8633 of 2020

Petitioner :- Makhan @ Makkhan Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ashutosh Pandey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Abhinava Upadhyay,J.

Hon'ble Shamim Ahmed,J.

Heard learned counsel for the petitioner; Sri Swarn Kumar Tripathi, learned counsel for the respondent no.2 and learned Standing Counsel for the respondent nos.1 & 3.

Pursuant to the non payment of electricity bill, the connection of the petitioner has been disconnected and now recovery citation has been issued on 10.01.2020 for a sum of Rs.2,97,053/- + other charges.

Learned counsel for the petitioner submits that the petitioner accepts the entire liability and ready to pay the entire amount, provided some installments are fixed.

The writ petition is ***disposed of*** with the observation that the petitioner can approach the Executive Engineer under, Clause 6.14 of the Electricity Supply Code, 2005 for fixing the installments. In case, petitioner approaches the Executive Engineer, respondent No.2 within a period of one week from today, his claim would be considered by the Executive Engineer, respondent No.2 and thereafter he will pass an appropriate order within a period of three weeks in accordance with law.

For a period of four weeks, no coercive action shall be taken against the petitioner pursuant to the recovery citation dated 10.01.2020 and the same shall be subject to final decision that the Executive Engineer will take in this regard.

Order Date :- 6.3.2020

P.S.Parihar

(Shamim Ahmed,J.) (Abhinava Upadhyay,J.)